

26. **Alterations in practice.**—The Court, according [*352] to the old practice, could not have *made a mere *declaratory order* without consequential directions (*a*), and could not have administered the trust in the presence of *some only* of the parties interested, or as to a *part only* of the trust estate, or as to the rights of persons entitled under a will without taking preliminary *accounts*; but [under the present practice] the Court is authorised to make declaratory orders merely, as also to adjudicate on questions in the presence of some only of the persons interested, and as to part only of the trust estate, and without ascertaining the particulars or accounts of the property touching which the question has arisen (*b*).

27. **Special case.**—The opinion of the Court may also be obtained upon a special case [in the manner provided by] Sir George Turner's Act, 13 & 14 Vict. c. 35 (*c*); but where the parties are numerous, it is found in practice that much time is consumed, and expense incurred, in settling the case so as to meet the different views of the parties, and [it will generally be found a shorter and simpler course to issue a writ of summons, and then state the question in the form of a special case under Order 34 of the Rules of the Supreme Court, 1883.]

28. **St. Leonards' Act.**—By Lord St. Leonards' Act, 22 & 23 Vict. c. 35, s. 30, any trustee, executor, or administrator may, without suit by *petition or by summons upon a written statement at Chambers*, apply to the Court of Chancery for its opinion, advice, or direction upon any question respecting the management or administration of the trust property, or assets of the testator or intestate. By the Amendment Act, 23 & 24 Vict. c. 38, s. 9, the application is required to

(*a*) See *Daniel v. Warren*, 2 Y. & C. C. C. 292; *Shewell v. Shewell*, 2 Hare, 154; *Gaskell v. Holmes*, 3 Hare, 438; *Say v. Creed*, 3 Hare, 455.

[*b*] See Rules of the Supreme Court, 1883, Ord. 25, R. 5; Ord. 16, R. 9, 11; Ord. 34, R. 2; Ord. 55, R. 3. And see 15 & 16 Vict. c. 86, ss.

50 and 51, which have, however, been repealed by 46 & 47 Vict. c. 49.]

[*c*] This Act is repealed by 46 & 47 Vict. c. 49, but by Ord. 34, R. 8, of the Rules of the Supreme Court, 1883, any special case may be stated for the same purposes, and in the same manner, as provided by the Act.]